Supreme Court, U.S.
FILED
MAR 21 2002
CLERK

No. 01-1196

In the Supreme Court of the United States

SIMON BALDERAS, *et al.*,
Appellants,
v.
STATE OF TEXAS, *et al.*,
Appellees.

On Appeal from the United States District Court for the Eastern District of Texas, Tyler Division

MOTION TO AFFIRM

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QUESTIONS PRESENTED

1. Whether Appellants can establish §2 liability regarding the Texas Senate and congressional districts solely by drawing a seventh majority Spanish-surname-registered-voter (SSRV) border district that (a) subordinates the traditional districting principle of compactness to race and (b) causes decreases in Latino voting strength in other existing SSRV-majority districts, jeopardizing the districts' effectiveness.

2. Whether Appellants can satisfy the first *Gingles* precondition by drawing seven SSRV-majority Texas Senate districts that must be intentionally underpopulated, based on race, to add the seventh SSRV-majority district to the existing six.

3. Whether the three-judge court's per curiam opinions—which adequately state the factual and legal bases for the court's judgments in the congressional and Texas Senate redistricting cases—violate Federal Rule of Civil Procedure 52(a).

LIST OF PARTIES

Although Appellants properly list Henry Cuellar, in his capacity as Texas Secretary of State, as a party to the action below, he is not a party to this appeal because the current Texas Secretary of State is Gwyn Shea.

Former Texas Secretary of State Cuellar was originally named in his official capacity as a defendant below, but he resigned from office in late 2001. Geoffrey S. Connor then served as Acting Secretary of State, and he automatically substituted for Secretary Cuellar in the proceeding below. FED. R. CIV. P. 25(d)(1). For this appeal, however, the current Secretary of State, Gwyn Shea, is automatically substituted, in her official capacity, for Acting Secretary Connor. SUP. CT. R. 35.3.

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MOTION TO AFFIRM

Pursuant to Supreme Court Rule 18.6, the State of Texas, Texas Governor Rick Perry, and Texas Secretary of State Gwyn Shea (collectively "the State") move to affirm the judgment rendered by the three-judge court on the ground that the questions presented are so insubstantial as not to require further argument. SUP. CT. R. 18.6.

STATEMENT OF THE CASE

The State objects to the argumentative nature of Appellants' statement of the case and directs the Court to the statement of proceedings set out in the three-judge court's opinions as to the congressional and Texas Senate plans, which are fair recitations of the proceedings leading up to this appeal. J.S., App. at 1-4 (congressional plan), 21-24 (Texas Senate plan).[1]

1. Appellants' Jurisdictional Statement will be cited as "J.S."

ARGUMENT

I. THE QUESTIONS PRESENTED ARE NOT SUBSTANTIAL AND THE COURT SHOULD SUMMARILY AFFIRM.

The three-judge court correctly rejected Appellants' §2 claims in the congressional and Texas Senate redistricting litigation. App., at 11-12, 25-26. In each case, Appellants urged the creation of a seventh majority Spanish-surname-registered-voter (SSRV)[2] district along the Texas border.[3] To achieve this end, Appellants pulled SSRV from other currently effective Latino districts and contorted border population into a highly irregular, seventh SSRV district. The three-judge court properly recognized the impermissibility of Appellants' approach, and this Court should summarily affirm because: (1) a seventh SSRV border district cannot be created without subordinating the traditional districting criteria of compactness to race; (2) Appellants' inability to demonstrate the effectiveness of their seven proposed SSRV districts defeats their §2 claims under the "totality of the circumstances" test; and (3) Appellants' §2 challenge to the Texas Senate districts, in particular,

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2. Texas voters do not indicate their race or ethnic origin when registering to vote; therefore, there is no official record of the number of potential voters from different racial or language minority groups. The Texas Secretary of State does, however, compare voter registration lists to a list of common Spanish surnames and reports the number of Spanish-surnamed, registered voters in each Texas precinct.

3. Appellants' congressional and Texas Senate claims resemble each other because they involve a similar number of districts: 32 congressional seats and 31 Texas Senate seats. Consequently, essentially the same number and type of minority districts can be drawn in congressional and Texas Senate plans. Indeed, Appellants' Jurisdictional Statement does not present distinct §2 arguments regarding their congressional and Texas Senate claims. Accordingly, the State will jointly address Appellants' congressional and Texas Senate claims unless otherwise indicated.

fails because their seven proposed districts must be intentionally underpopulated to construct SSRV majorities, and this race-based strategy offends equal-protection principles.

A. Appellants Mischaracterize the Basis for the Three-Judge Court's Rejection of Their §2 Claims.

Appellants erroneously state that the three-judge court "held that Latinos were not *numerous* enough to constitute a 'majority' in an additional congressional district or an additional senate district" even though SSRV population in the proposed districts was 50% or greater. J.S., at 9 (emphasis added). They further mistakenly conclude that the court imposed an additional, impermissible requirement under *Thornburg v. Gingles*, 478 U.S. 30 (1986), that SSRV population exceed a voter majority "by an immeasurable amount." *Id.* But no such thing occurred.

The three-judge court's holding was not focused *solely* on numerosity, as Appellants suggest. Instead, the court concluded that "the Latino population is not sufficiently *compact* or numerous to support another, *effective* majority Latino citizenship district." App., at 14 (congressional), 26 (Texas Senate). In other words, the court identified two additional concerns—compactness and effectiveness—that defeat Appellants' §2 claims. And this Court's precedent fully supports the lower court's reasoning.

1. The three-judge court correctly rejected Appellants' request for a seventh SSRV border district that subordinates the traditional districting principle of compactness to race.

The court's first concern, compactness, renders Appellants' proposal impermissible on two levels. First, it demonstrates that Appellants cannot satisfy the first precondition under *Gingles*, which requires a §2 plaintiff to demonstrate that the protected minority group is "sufficiently large *and geographically compact* to constitute a majority in a single-member district." 478 U.S., at

50 (emphasis added). Second, it reveals that the creation of a seventh Latino border district would impermissibly elevate race over traditional districting principles, contravening *Shaw v. Reno*, 509 U.S. 630 (1993).

Along the Texas border, it is impossible to create a seventh Latino district that is reasonably compact. Although border areas have extensive Latino population, an additional Latino district cannot be achieved without dividing a naturally compact Latino population into separate components and then linking those components to non-Latino population from unrelated communities as much as two-hundred miles away. The racially manipulated, non-compact configuration that emerges confirms that there is no §2 obligation to construct a seventh Latino border district. "If, because of the dispersion of the minority population, a reasonably compact majority-minority district cannot be created, §2 does not require a majority-minority district." *Bush v. Vera*, 517 U.S. 952, 979 (1996); *see also Shaw v. Hunt*, 517 U.S. 899, 916 (1996) ("[A] plaintiff must show that the minority group is 'geographically compact' to establish §2 liability. No one looking at [North Carolina] District 12 could reasonably suggest that the district contains a 'geographically compact' population of any race. Therefore, where that district sits, 'there neither has been a wrong nor can [there] be a remedy.") (citations omitted).

Appellants contend that other equally or more non-compact districts have existed in Texas's past, J.S., at 19, but they fail to recognize that lack of compactness raises Fourteenth Amendment concerns when it results from race-based districting decisions. *See Shaw*, 509 U.S., at 647 (noting that equal-protection concerns would arise if a State "concentrated a dispersed minority population in a single district by disregarding traditional districting principles such as compactness, contiguity, and respect for political subdivisions); *see also, e.g., Hunt v. Cromartie*, 532 U.S. 234 (2001); *Bush*, 517 U.S. 952; *Miller v. Johnson*, 515 U.S. 900

(1995).[4] The three-judge court properly refused to create an additional border district that would have contravened *Shaw* and its progeny by subordinating compactness to race.[5]

2. The three-judge court correctly rejected Appellants' §2 claims under the "totality of the circumstances," finding that another effective Latino district could not be drawn.

Appellants erroneously argue that the three-judge court imposed a super-majority requirement under *Gingles*'s first prong when it concluded that "the Latino population is not sufficiently compact or numerous to support another, effective majority Latino

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4. These elongated SSRV border districts also pull in random pockets of Anglo population to fill out thinly majority-Latino districts. This type of practice was criticized in *Bush* in the context of "reach[ing] out to grab small and apparently isolated minority communities" to increase minority strength in a "bizarrely shaped district." 517 U.S., at 978. The same equal-protection principles preclude reaching out to grab isolated pockets of Anglo population to flesh out a district drawn to spread an otherwise overly compact minority population. Pulling in isolated pockets of Anglos is just as problematic as pulling in isolated pockets of minorities, because in both instances traditional districting criteria are subordinated to race. And that is the touchstone of an equal-protection violation. *See Shaw*, 509 U.S., at 650 (noting that equal-protection analysis is not dependent on the race of those burdened or benefitted by a particular classification).

5. Although this Court has assumed that compliance with §2 would be a compelling interest for purposes of strict scrutiny, *see Bush*, 517 U.S., at 977, that justification applies only when the creation of a majority-minority district "is reasonably necessary to comply with §2." *Id.* No such necessity exists here, because "[i]f, because of the dispersion of the minority population, a reasonably compact majority-minority district cannot be created, §2 does not require a majority-minority district." *Id.*, at 979.

citizenship district" in Texas. App., at 14, 26; *see also* J.S., at 9. But the court never stated that its "effectiveness" conclusion was a *Gingles* prong-one issue. Rather, effectiveness is part of the "totality of the circumstances" to be considered in evaluating Appellants' claim. *See* App., at 14-15, 26; *see also, e.g., Johnson v. De Grandy*, 512 U.S. 997, 1009-13 (1994); *Gingles*, 478 U.S., at 43 (quoting §2(b) of the Voting Rights Act).

Although Appellants declare that the three-judge court superimposed an effectiveness requirement onto *Gingles*'s first prong, nothing in the court's opinions supports this characterization. And Appellants fail to explain why the court's "effectiveness" finding must be linked to *Gingles*'s first prong, rather than the totality-of-the-circumstances test. Inexplicably, they simply assume that is what the court did. *See, e.g.*, J.S., at 13 n.3 ("Of course, the remainder of the *Gingles* framework also applies to such claims; however, with the exception of its conclusory statement regarding the 'totality of the circumstances,' the District Court here addressed only the first *Gingles* precondition."). This Court should reject Appellants' attempt to distort the three-judge court's effectiveness finding into an incorrect application of *Gingles*'s first prong.

The court's effectiveness finding is consistent with the State's totality-of-the-circumstances arguments at trial. Specifically, the State argued that §2 did not require the creation of an additional Latino district—under the totality of the circumstances—because there was no evidence that seven barely majority SSRV districts would be effective at electing Latinos' candidate of choice. There had been testimony, for example, that existing congressional District 23—with 53.2% SSRV—does not consistently elect Latinos' candidate of choice. Indeed, that district is currently represented by a Republican, Henry Bonilla, even though statistics show that the majority of Latino voters in District 23 consistently vote for his Democratic opponents. Because Representative Bonilla

was able to attract some otherwise Democratic Latino voters, he obtained a sufficient percentage to win the overall election. Thus, District 23's slim SSRV majority of 53.2% was ineffective for purposes of electing the candidate preferred by the majority of the district's Latino voters.

Because Appellants proposed seven Latino districts with slim SSRV majorities (due to the lack of sufficient population to create seven districts with greater-than-marginal SSRV majorities), Appellants' plan raised effectiveness concerns similar to those exemplified by District 23. Moreover, the seventh SSRV district exists only because Appellants dangerously reduced the number of Latinos in existing districts—jeopardizing the districts' ability to perform. Indeed, Congressman Charles Gonzalez testified that districts are not effective when SSRV majorities are stretched too thin—as they are in Appellants' proposals. Appellants offered no contrary electoral analysis that addressed, much less proved, the effectiveness of their seven proposed districts.

In addition, Appellants' strategy of stretching the existing six SSRV-majority districts into a seventh creates problems under §5 of the Voting Rights Act. Indeed, the three-judge court expressly noted this totality-of-the-circumstances concern in its Texas Senate opinion:

> "We further find that, under the totality of the circumstances, the failure to create a seventh Latino majority district will not prevent full and equal Latino participation in the political process. Rather, creating such a district would risk giving rise to retrogression in the existing Latino majority districts." App., at 26.[6]

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6. For example, current Senate District 27 has an SSRV population of 73.91%, but under Appellants' Plan 1194-S that number drops more than 20 percentage points to 52.13%. And under Appellants' alternative Plan 1206-S, District 27 drops even further to 50.45%.

Although federal-court plans may not be subject to preclearance, this Court has nonetheless advised federal courts to follow §5 requirements in fashioning remedial plans. *See, e.g., Abrams v. Johnson*, 521 U.S. 74, 96 (1997). The three-judge court correctly recognized that transforming currently performing Latino districts into nonperforming districts would raise §5 concerns, and it appropriately rejected Appellants' request for a seventh SSRV-majority district.

B. Appellants' Seven Proposed SSRV Senate Districts Are the Impermissible Product of Intentional, Race-Based Underpopulation.

Appellants' Jurisdictional Statement does not distinguish their §2 claims with respect to congressional and Texas Senate redistricting. And, for the most part, this approach is understandable because, in each context, the seven SSRV districts Appellants requested were similar due to the comparable number of districts in the two plans (*i.e.*, 32 congressional and 31 Texas Senate seats).

There is, however, one significant difference: an ideally populated Texas Senate district contains more population than a congressional district, since there is one fewer district across which to spread Texas's total population. And because of the increased size of Texas Senate districts, it is possible to create seven majority SSRV districts only if those districts are intentionally underpopulated to enhance SSRV.[7] Because such intentional, race-based redistricting runs afoul of *Shaw v. Reno* and its progeny—and because there is insufficient population to create seven SSRV districts in the absence of race-based population adjustments—the three-judge court correctly concluded that the "Latino population

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7. For example, if a fully populated district contained 100 persons of whom 48 are Spanish-surnamed registered voters, SSRV would be 48%. But if the district were intentionally underpopulated to contain only 95 persons, the same 48 Spanish-surnamed registered voters would constitute an SSRV majority of 50.5%.

is not sufficiently compact or numerous to support another, effective majority Latino citizenship district" in the Texas Senate plan. App., at 26.

Ideal district size—*i.e.*, the per-district population that will produce 31 equally populated Texas Senate districts—is the appropriate starting point for analyzing Appellants' §2 claim. Indeed, it is the only truly objective benchmark against which to measure Appellants' allegations of vote dilution. *See Holder v. Hall*, 512 U.S. 874, 880 (1994) (plurality) ("[In] determining whether the *Gingles* preconditions are met and whether the totality of the circumstances supports a finding of liability, a court must find a reasonable alternative practice as a benchmark against which to measure the existing voting practice."); *see also id.*, at 887 (O'Connor, J., concurring) (noting the Court's "general agreement" that "courts must choose an objectively reasonable alternative practice as a benchmark for the dilution comparison"). The ideal population for a Texas Senate district is 672,639—which is approximately 3% larger than an ideal congressional district.[8]

Although an ideal Texas Senate district is larger than a congressional district, the total available Latino population remains the same for the congressional and Texas Senate plans. And that population—which was barely adequate to create seven SSRV majorities in the smaller congressional districts—is insufficient to create seven SSRV majorities in a fully populated Texas Senate district. Indeed, SSRV majorities can be preserved only if Texas Senate districts are intentionally underpopulated to more closely resemble the size of a congressional district. And that is precisely

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8. Texas's 32 congressional districts are constitutionally required, under Art. I, §2, to consist of equal population "as nearly as is practicable." *Mahan v. Howell*, 410 U.S. 315, 320 (1973) (quoting *Wesberry v. Sanders*, 376 U.S. 1 (1964)). By contrast, the 31 Texas Senate districts are subject to the population-equality demands of the Fourteenth Amendment's Equal Protection Clause, which is slightly less rigorous. *See, e.g., id.*, at 321-22.

the race-based strategy that Appellants' urged and that the three-judge court correctly declined to follow.

All seven Latino districts in Appellants' proposed Plan 1194-S are underpopulated—including the four most underpopulated districts in the State and five of the top six. Together, these districts result in a total underpopulation of 26.49%—more than a quarter of an ideal district. In other words, to achieve their goal of an additional SSRV district, Appellants' essentially stretched six and three-fourths Texas Senate districts into seven.[9] This attempt to satisfy *Gingles*'s population threshold through manipulation of district size was properly rejected by the three-judge court. Because Appellants failed to demonstrate that seven SSRV districts could be drawn under the proper benchmark—an ideally populated Texas Senate district—they did not satisfy the first prong of *Gingles*.[10] Accordingly, the three-judge court correctly rejected their §2 claim.

Moreover, the court properly declined to embrace Appellants' strategy of intentional, race-based underpopulation. Such elevation

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9. Appellants offered an alternative plan (1206-S) that was less egregious, but it still produced an underpopulation of 19.38%—nearly one-fifth of a district.

10. Appellants acknowledge that they framed their §2 claims in terms of SSRV districts. J.S., at 17 n.6. Yet, at the same time they complain that the three-judge court used the very standard they proposed in its §2 analysis, rather than the Fifth Circuit's benchmark of citizen voting age population (CVAP). J.S., at 15. This complaint is disingenuous because Texas's Latino CVAP numbers are not yet available and, therefore, were neither offered by Appellants at trial nor utilized in the three-judge court's analysis. The closest proxy, SSRV, was available because, as Appellants note, the Texas Secretary of State collects and reports these statistics. J.S., at 14 n.4. And, under these circumstances, Appellants chose to use SSRV numbers in framing their §2 claims. The three-judge court did not disregard Fifth Circuit CVAP precedent or impose an "unprecedented" burden under the first *Gingles* precondition, as Appellants erroneously contend. J.S., at 17.

of race over traditional districting criteria offends equal-protection principles. *See, e.g., Bush*, 517 U.S., at 958-59, 962-64; *Miller*, 515 U.S., at 905, 911-12; *Shaw*, 509 U.S., at 644-49.[11] Because Appellants cannot establish seven SSRV districts in the absence of impermissible race-based underpopulation, this Court should summarily affirm the lower court's judgment rejecting Appellants' §2 challenge to the Texas Senate districts.

II. THE THREE-JUDGE COURT'S FACTUAL FINDINGS SATISFY RULE 52 AND ARE SUFFICIENT FOR PROPER APPELLATE REVIEW.

The Court should reject Appellants' final argument that the three-judge court failed to comply with Federal Rule of Civil Procedure 52. The per curiam opinions in the Texas Senate and congressional redistricting cases satisfy Rule 52 and permit proper appellate review by "'giv[ing] the reviewing court a clear understanding of the factual basis for the decision.'" *Folger Coffee Co. v. Olivebank*, 201 F.3d 632, 635 (CA5 2000) (quoting *Burma Navigation Corp. v. Reliant Seahorse MV*, 99 F.3d 652, 656 (CA5 1996)); *Unt v. Aerospace Corp.*, 765 F.2d 1440, 1444 (CA9 1985) (holding that remand was not necessary, even though findings did not articulate specific factual bases for holding, because the basis for the court's decision was clear); *see also* FED. R. CIV. P. 52(a).

Moreover, even if the Court were to decide that the findings in the per curiam opinions were somehow deficient, remand would not be necessary because "'the failure of a District Court to comply with Rule 52(a) in respect of findings of fact does not demand reversal of the correct judgment . . . if a full understanding of the

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11. As previously discussed, the Court has assumed that compliance with §2 would be a compelling interest for purposes of strict scrutiny—but only when the creation of the minority-majority district is "reasonably necessary to comply with §2." *Bush*, 517 U.S., at 977. No such necessity exists with respect to the Texas Senate districts, because Appellants did not demonstrate that the seven SSRV districts they request are possible using the proper benchmark of an ideally populated district.

issues could be reached without the aid of findings even though such findings would have been helpful.'" *Six Clinics Holding Corp, II v. Cafcomp Sys., Inc.*, 119 F.3d 393, 400 (CA6 1997) (quoting *Urbain v. Knapp Bros. Mfg. Co.*, 217 F.2d 810, 815 (CA6 1954)). Because a full understanding of the issues is easily obtained from the per curiam opinions, the Court should not reverse and remand for additional factfindings in support of the lower court's Texas Senate and congressional judgments.

CONCLUSION

The Court should summarily affirm the judgments of the three-judge court. SUP. CT. R. 18.12.

Respectfully submitted,

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March 21, 2002

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